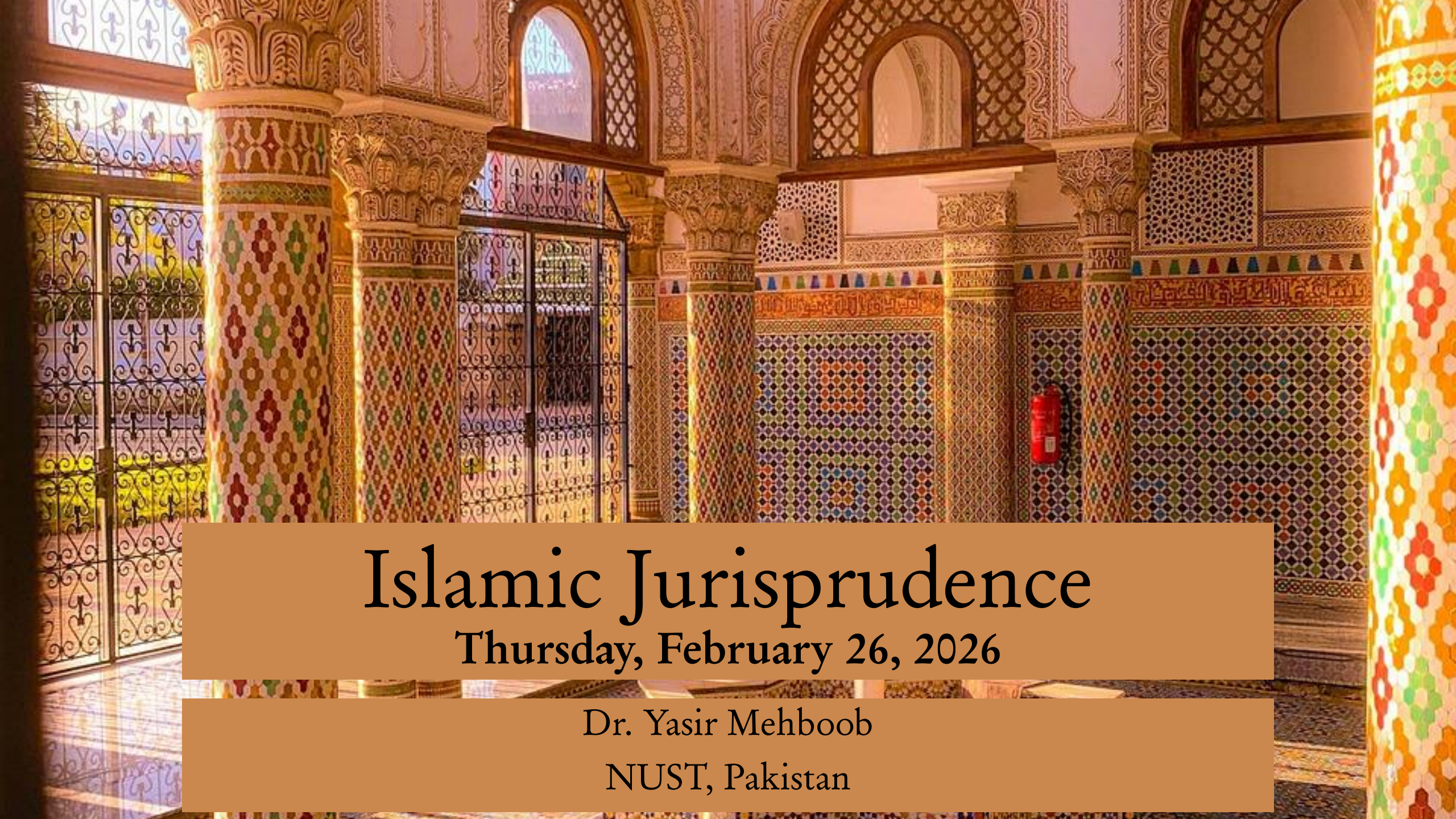


Islamic Jurisprudence

Thursday, February 26, 2026

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NUST, Pakistan


بسم الله الرحمن الرحيم

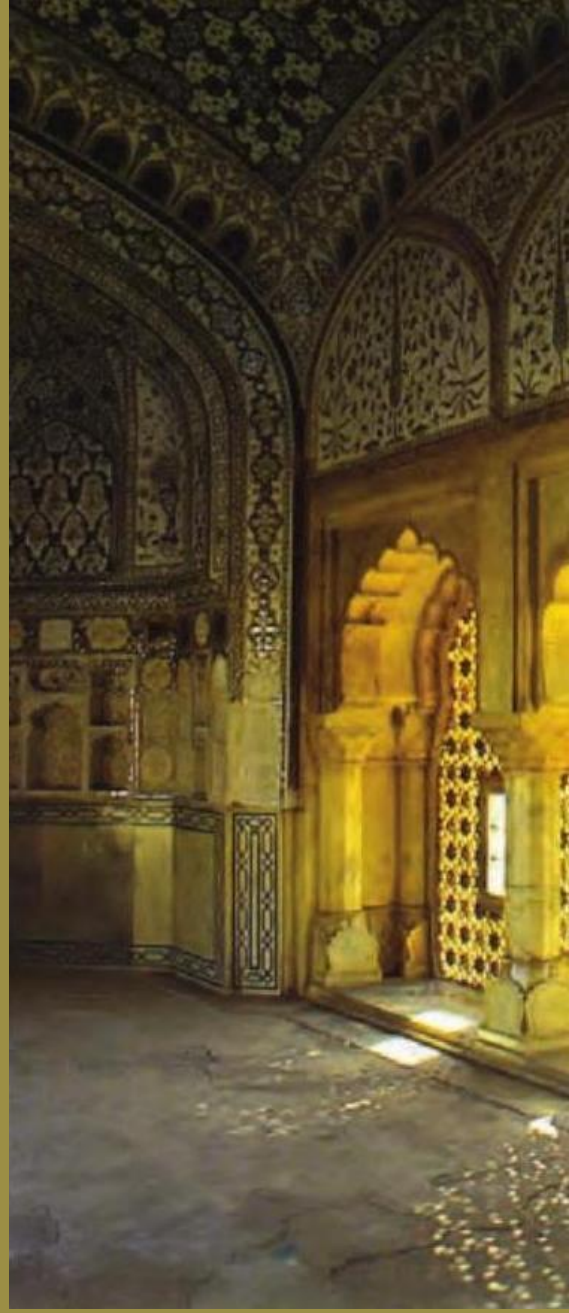
Fundamentals of Islamic Jurisprudence

- Humans own freewill and this makes them capable of taking independent decisions. Their power of decision can bring peace, or it can bring havoc. To guide humanity through the peaceful, complete and relevant code of conduct, divine religions used to come with a complete set of principles, practices and a law.
- Not all religions are divine religions, and not all divine religions today retain their law of Halal and Haram.
- **Orthopraxy** means a religion is emphasizing correct practice/action over belief. It focuses on rituals, behavior, and observance.
- **Orthodoxy** means a religion is emphasizing correct belief/doctrine over practice. It focuses on faith, creed, and theological correctness.



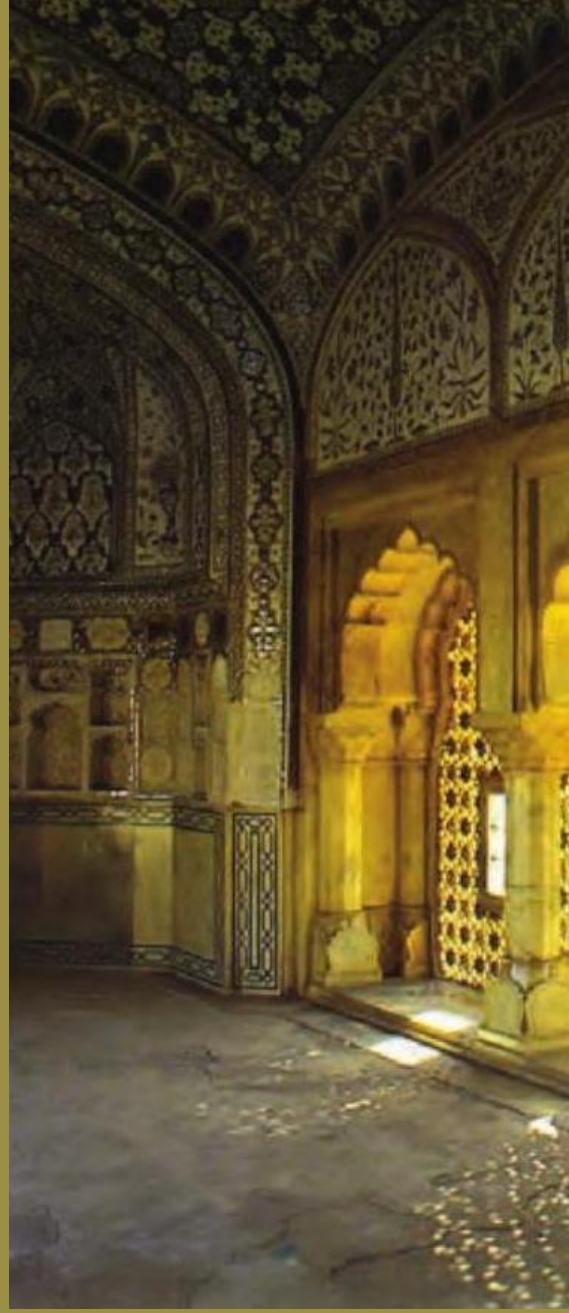
Fundamentals of Islamic Jurisprudence

- **Nomian religions** means those religions that contain comprehensive legal and ethical codes governing daily life. One must say that nomian religion has its own law and has a clear system of Halal and Haram actions.
- **Non-nomian religions** are opposite of the former, they lack formal legal systems and emphasize personal spirituality, ethics, or philosophy. Christianity, Taoism, and many New Age movements falls under this category.
- **Islam is both orthodox (Aqeedah is most important) and nomian (has Sharia), and even beyond this distinction, it has its own social, economical and political systems. Christianity is orthodox but mostly non-nomian (no binding religious law system).**

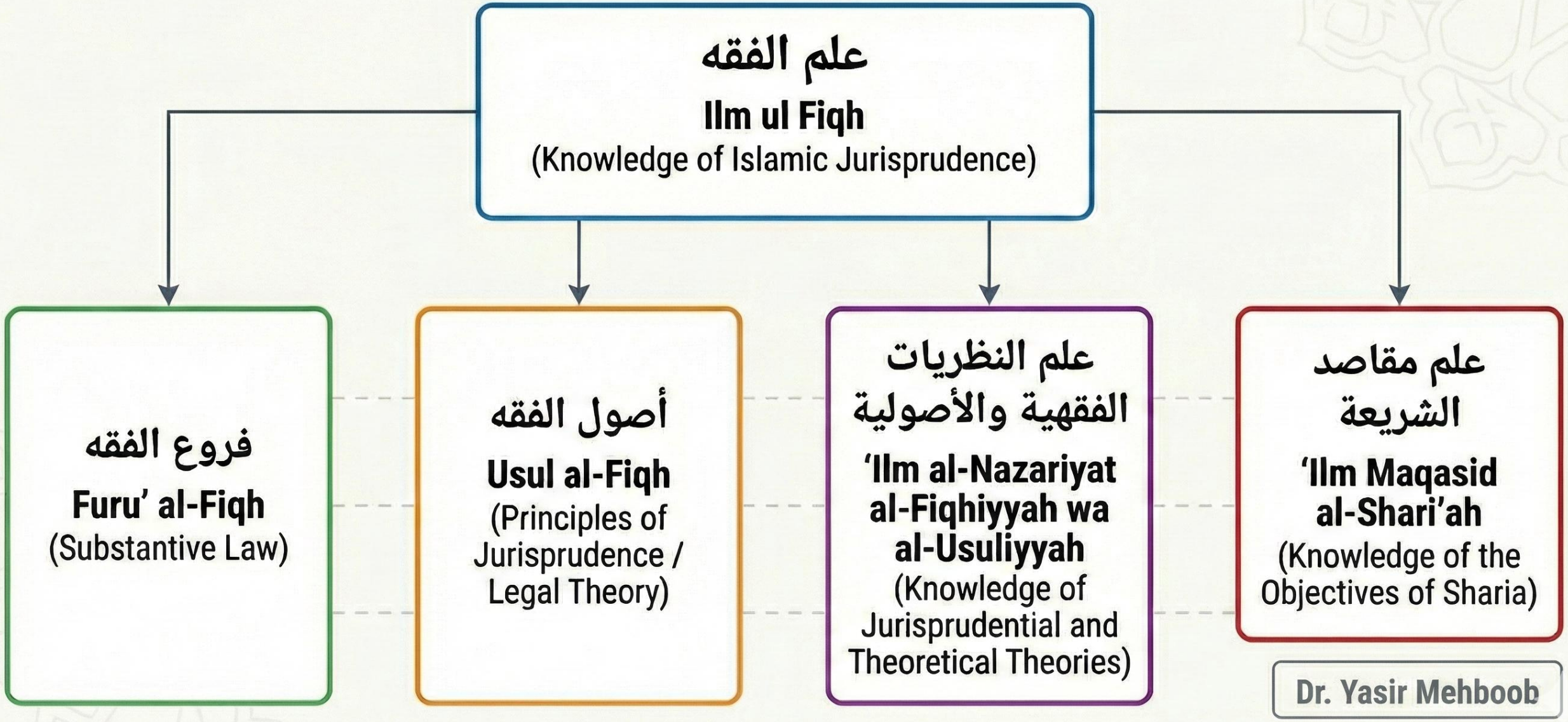


Fundamentals of Islamic Jurisprudence

- These principles of human action, social, economic and political systems, ethical framework, and prescribed conduct for a human is known as Shariah.
- The knowledge science which deals know and explore Shariah is known as Ilm ul Fiqh. It could be divided to **four sub-fields.**
- Fiqh deals with the every aspect of law, and more. Unlike conventional law, Fiqh covers broader areas of human life. It has **eight areas.**
- According to Fiqh, each human action could be divided into **five categories.**



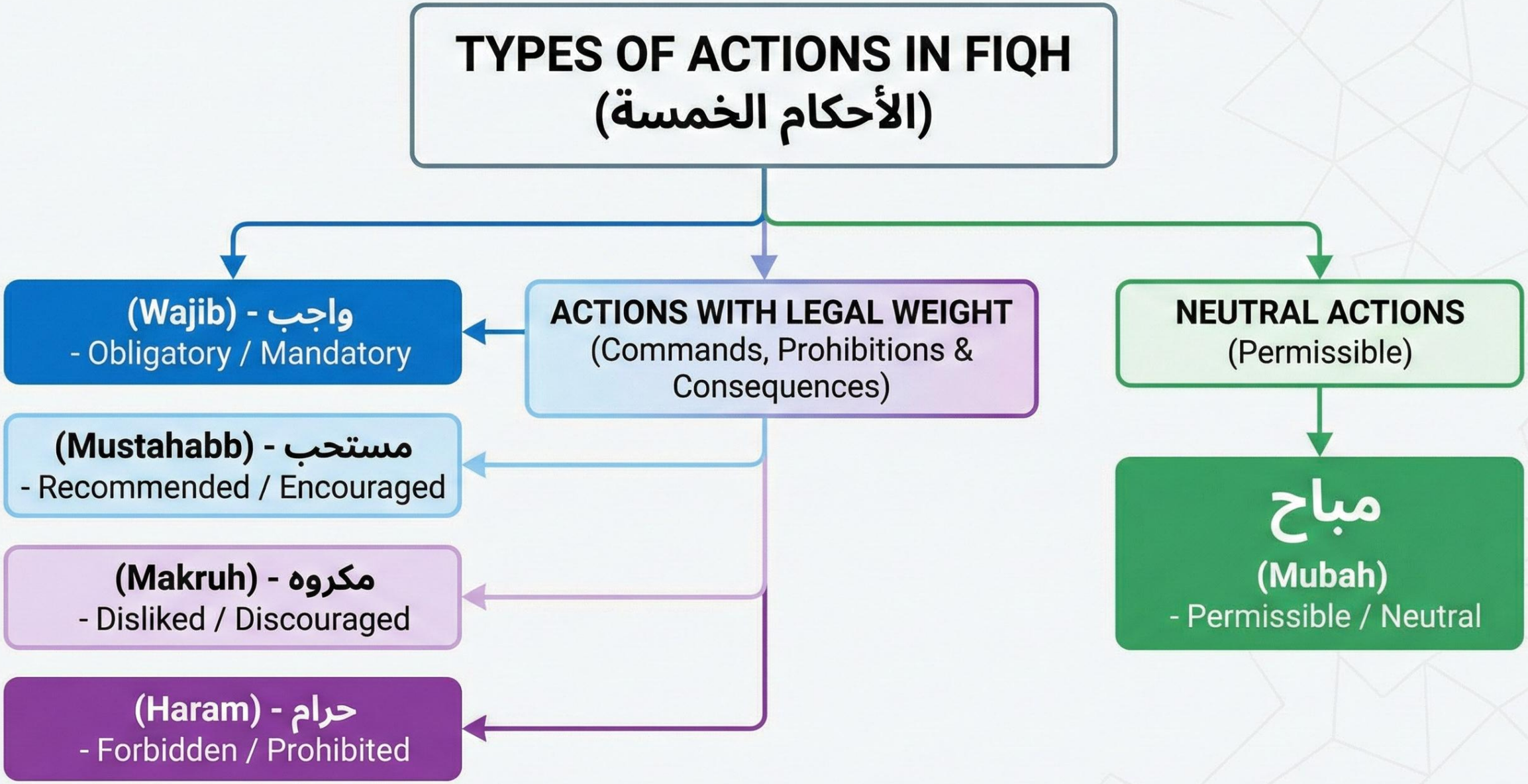
The Categories of Ilm ul Fiqh (Islamic Jurisprudence Knowledge)



Dr. Yasir Mehboob

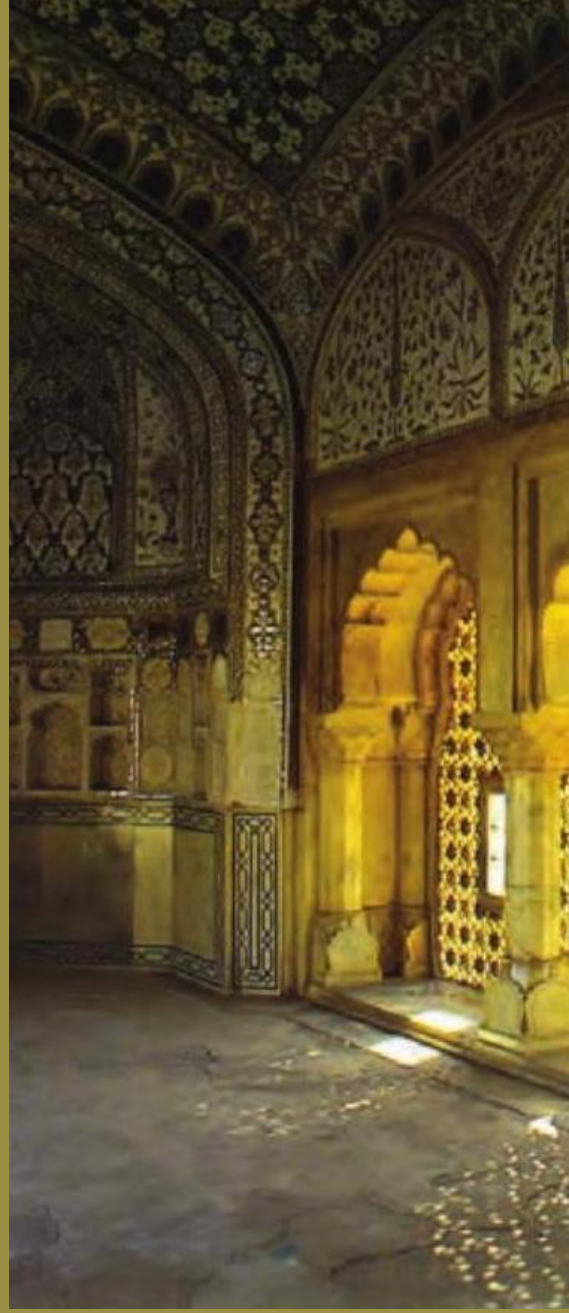
Islamic Fiqh

- Worship
- Family Laws
- Business Law
- Culture and Daily Life
- Judiciary
- Criminology
- State Craft and Political System
- International Law


TYPES OF ACTIONS IN FIQH
(الأحكام الخمسة)
ACTIONS WITH LEGAL WEIGHT
(Commands, Prohibitions & Consequences)
NEUTRAL ACTIONS
(Permissible)
(Wajib) - واجب
- Obligatory / Mandatory
(Mustahabb) - مستحب
- Recommended / Encouraged
(Makruh) - مكروه
- Disliked / Discouraged
(Haram) - حرام
- Forbidden / Prohibited
مباح
(Mubah)
- Permissible / Neutral

Ijtihad, its Significance and Relevance in the Modern Era

- Ijtihad is an Islamic legal term referring to the process of exerting one's utmost intellectual effort to derive legal rulings from the primary sources of Islamic law (the Qur'an and Sunnah). It is done in cases where there is no explicit guidance from the scriptures.
- Ijtihad means "exertion" or "striving" in something that requires effort and difficulty.
- In Islamic jurisprudence, it is defined as "exerting all possible effort by a **qualified jurist** to reach a ruling on a legal issue".



Ijtihad, its Significance and Relevance in the Modern Era

Key aspects of Ijtihad include:

- It is only performed by someone qualified in Islamic law, who is knowledgeable about the Qur'an, Sunnah, Consensus (Ijma'), and analogical reasoning (Qiyas), as well as the Arabic language and principles of jurisprudence.
- Ijtihad is used to address new issues and unprecedented situations (nawazil) for which there is no **clear and direct** text in the Qur'an or Sunnah.
- The process involves examining the available evidence, understanding its implications, and deriving a ruling that aligns with the objectives and principles of Islamic law.
- Ijtihad encompasses all forms of legal reasoning and deduction from the sources.

In summary, ijtihad is the scholarly effort to deduce legal rulings from Islamic sources in matters not explicitly addressed, ensuring that Islamic law remains dynamic and responsive to new circumstances.



Ijtihad, its Significance and Relevance in the Modern Era

Significance in Islamic Thought

- Ensures adaptability of Islamic law to new circumstances.
- Balances tradition with modernity.
- Encourages intellectual engagement and responsibility in decision-making.

Qualifications of a Mujtahid

- Basic requirements: deep knowledge of Qur'an, Sunnah, Arabic language, principles of jurisprudence, and awareness of social context.
- Why non-specialists should understand these qualifications (to appreciate the rigor, not to practice it themselves)



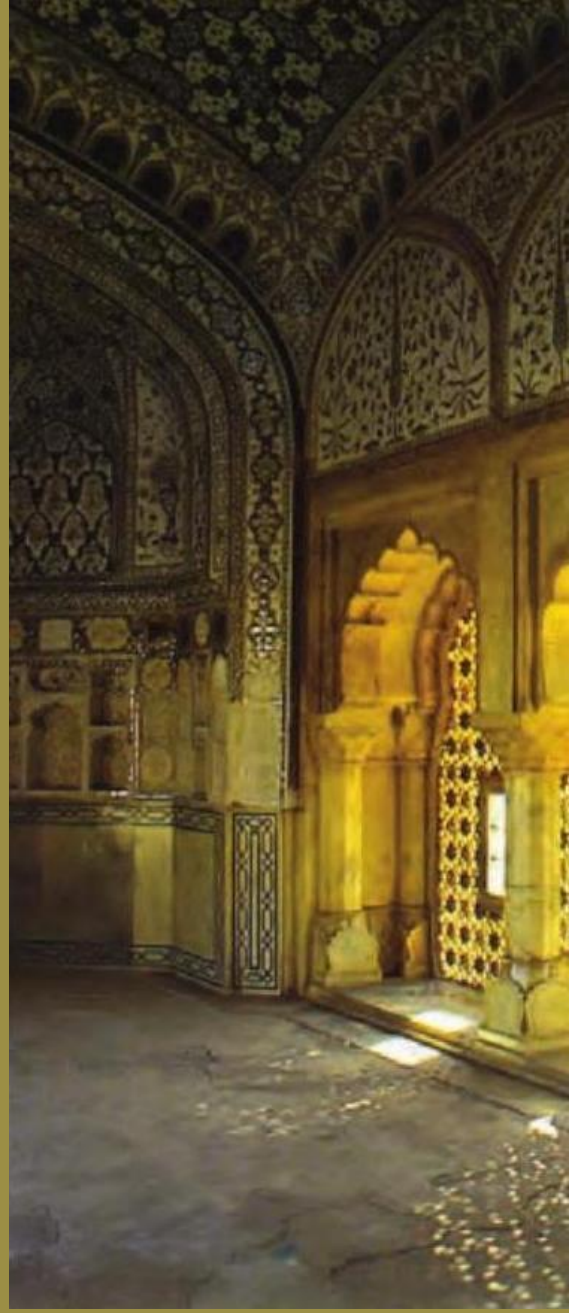
Ijtihad could be under taken on Individual level as well as on Collective level. *Individual Ijtihad* is when a single qualified scholar uses independent reasoning to derive a ruling, while *Collective Ijtihad* involves a group of scholars (often councils or institutions) working together to reach a consensus on complex issues.

Aspect	Individual Ijtihad	Collective Ijtihad
Decision-maker	One scholar	Group of scholars/council
Speed	Faster	Slower (deliberative)
Perspective	Depends on the strengths of the scholar	Broader, interdisciplinary
Authority	Based on scholar's reputation	Institutional legitimacy
Best suited for	Classical issues, straightforward cases	Complex modern issues (finance, medicine, governance)
Examples	Individual Imams	• Islamic Fiqh Academy (OIC). • National fatwa councils in various countries



Introduction to Islamic Finance

- Islamic finance is a financial system that operates in accordance with the principles of Islamic law (Shariah). Its primary aim is to provide financial services and products that comply with the ethical, social, and legal guidelines set by Islam. The foundation of Islamic finance is the prohibition of **riba** (usury or interest), **gharar** (excessive uncertainty), **maysir** (gambling), and **jahala** (ambiguity that could lead to dispute), as well as the requirement that all financial transactions be based on real economic activity and asset-backing.
- The emergence of Islamic banks was a response to the desire of Muslim communities to achieve comprehensive development in their countries by collecting savings and directing them towards investment according to the guidance of Allah, thereby preserving independence, protecting freedom, and ensuring progress and prosperity for the Muslim ummah. Islamic banks quickly gained popularity, with people depositing their money and seeking financing in accordance with Shariah principles.



Principles of Legitimate and Illegitimate Contracts

Islamic finance distinguishes between legitimate (valid) and illegitimate (invalid or prohibited) contracts based on clear Shariah principles. Principles of Legitimate Contracts are as followed:

- Freedom and Consent: Contracts must be entered into freely and with mutual consent.
- Clarity: The subject matter and the terms must be clear.
- Asset Ownership or Ability to Deliver: The subject of the contract must be owned by the seller and deliverable at the time of contract.
- Lawful Purpose: The contract must not involve anything prohibited by Shariah, such as riba (usury/interest), gharar (excessive uncertainty), or maysir (gambling).
- Absence of Deception: The terms must be clear, and the contract must not involve deception, fraud, or unjust exploitation.



Principles of Legitimate and Illegitimate Contracts

Principles of Illegitimate Contracts:

- Coersion
- Ambiguity: It refers to vagueness or lack of clarity in the essential elements of the contract, such as the price, the item being sold, or the terms of delivery.
- Riba: Any contract involving interest is strictly forbidden. Even if the contract appears valid outwardly, if its purpose is prohibited (such as riba), it is invalid.
- Gharar and Maysir: Contracts with excessive uncertainty or those akin to gambling are invalid.
- Prohibited Subject Matter: Contracts involving unlawful goods or services (e.g., alcohol, pork, or activities like gambling) are void.
- Lack of Ownership or Ability to Deliver: Selling what one does not own or cannot deliver is prohibited.
- Unjust Enrichment or Harm: Contracts that result in unjust enrichment, exploitation, or harm to either party are not allowed.
- Wealth culmination in few hands

